

Court No. - 21

Case :- WRIT - C No. - 29954 of 2015

Petitioner :- M/S Maruti Papers Limited Thru' Its Director

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & Another

Counsel for Petitioner :- Mayank Agarwal

Counsel for Respondent :- A.K. Saxena

Hon'ble Vikram Nath,J.

Hon'ble Dinesh Gupta,J.

At the very outset, learned counsel for the petitioner submits that in the similar set of fact, this Court has granted protection and entertained the matter. Copy of the order passed in Writ Petition No.18855 of 2008 has been annexed as Annexure 7 to the writ petition.

In view of the aforesaid, connect this petitioner referred herein above.

Sri A. K. Saxena, learned counsel appearing for the respondents may file counter affidavit by the next date.

On the fact, following order is being passed:-

The petitioner applied for sanction of additional load of 2000 KVA. The respondents have put a condition that the bank guarantee is to be deposited equivalent to the amount due against the petitioner which has been stayed by this Court in writ petition no.25603 of 2007, otherwise the additional load cannot be released to the petitioner in view of para 4.49, of the U.P. Electricity Supply Code 05.

We are of the opinion that since in the writ petition the amount has been stayed and writ petition is subjudice, the respondents cannot in the list of furnishing of Bank guarantee equivalent to the amount due in the aforesaid writ petition and on this ground cannot refuse to release the additional load to the petitioner. We therefore direct the respondents to release the additional load of 2000 KVA to the petitioner without insisting for bank guarantee equivalent to the amount due in the aforesaid writ petition, which have already been stayed by this Court. However, other charges shall be paid by the petitioner to the respondents.

Order Date :- 21.5.2015

SS

Court No. - 29

Case :- WRIT - C No. - 29954 of 2015

Petitioner :- M/S Maruti Papers Limited Thru' Its Director

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & Another

Counsel for Petitioner :- Mayank Agarwal

Counsel for Respondent :- A.K. Saxena,S.C.

Hon'ble Tarun Agarwala,J.

Hon'ble Vipin Sinha,J.

Learned counsel for the petitioner states that the writ petition has become infructuous.

The writ petition is, accordingly, dismissed as infructuous.

Order Date :- 12.9.2016

AKJ

(Vipin Sinha,J.)

(Tarun Agarwala,J.)